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IN THE FAMILY DIVISION

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OF THE SECOND JUDICIAL DISTRICT COURT OF THE STATE OF NEVADA

8

IN AND FOR THE COUNTY OF WASHOE

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IN THE MATTER OF:

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EVAKAY BALDES, AND

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ALEXIS CLARK,

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MINOR CHILDREN.

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Case No. JV24-00104

JV24-00105

Dept. No. JM1

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**MASTER'S FINDINGS OF FACT AND RECOMMENDATIONS AFTER
ADJUDICATORY HEARING AS TO DONOVAN CLARK; CONTINUING
ADJUDICATORY HEARING AS TO JUSTIN BALDES; SCHEDULING ORDERS AS
TO MEGAN MCCAFFERTY**

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This matter came before the Court for an Adjudicatory Hearing on the Petition pursuant to NRS 432B.530 and NRS 432B.540 on March 6, 2024, before Master Alison Testa and the following persons appeared: Evakay Baldes and Alexis Clark, said minor children, were not present and their appearances were waived by their counsel, Erin Ching, Esq. with Northern Nevada Legal Aid, who appeared by video conference for Jennifer Jeans, Esq.; Megan McCafferty, mother of said minor children, appeared by video conference and was represented by Christine Sullivan, Deputy Public Defender, who also appeared by video conference; Justin Baldes, legal father of Evakay Baldes, appeared by video conference; Donovan Clark, presumed father of Alexis Clark, appeared by video conference and was represented by Tirzah Mathews, Deputy Alternate Public Defender, who also appeared by video conference; Natasha Mieras, case worker from Washoe County Human Services Agency, appeared by video conference and was

1 represented by Tyler E. Beach, Deputy District Attorney, who also appeared by video
2 conference.

3 The parties were advised of their rights. Having heard the evidence and good cause
4 appearing, the Court hereby makes the following findings and recommendations:

5 FINDINGS

6 1. The Court has jurisdiction pursuant to NRS Chapters 432B and 125A.

7 2. An initial inquiry has been made about whether the Indian Child Welfare Act applies.

8 Based upon information provided by the parents or obtained by the Washoe County Human
9 Services Agency (“WCHSA”), the Indian Child Welfare Act does not apply.

10 3. The parents were properly served with the Summons and Petition and advised of their
11 right to be represented by an attorney.

12 4. The Court canvassed Justin Baldes as to his financial status and, based upon his
13 testimony, makes a finding of indigency as to Justin Baldes.

14 5. Good cause exists to continue the Adjudicatory Hearing as to Justin Baldes outside the
15 statutory timing requirement pursuant to NRS 432B.530(1), to allow Justin Baldes, consult with
16 counsel before responding to the Petition.

17 6. Donovan Clark submitted to the allegations contained in the First Amended Petition
18 for Hearing as to Donovan Clark filed March 6, 2024.

19 7. The allegations contained in the First Amended Petition for Hearing as to Donovan
20 Clark filed March 6, 2024, are sustained as to Donovan Clark.

21 8. The children are in need of protection pursuant to NRS 432B.330(1)(b), as Donovan
22 Clark, a person responsible for their welfare, subjected them to neglect.

23 9. Megan McCafferty entered a denial as to the allegations contained in the Petition for
24 Hearing filed February 5, 2024.

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10. Good cause exists to hold the Adjudicatory Hearing as to Megan McCafferty outside the statutory timing requirement pursuant to NRS 432B.530(1) to allow the parties time to participate in a Mediation and Settlement Conference prior to an Evidentiary Hearing.

RECOMMENDATIONS

1. The Public Defender's Office is hereby appointed to represent Justin Baldes in this matter.

2. Evakay Baldes and Alexis Clark shall remain in the legal and physical custody of the Washoe County Human Services Agency with the Agency having the right to determine the placement of the children, subject to review by the Court.

3. The continued Adjudicatory Hearing as to Justin Baldes and Dispositional Hearing
Donovan Clark, Justin Baldes and the minor children shall be held on March 20, 2024, at 2:00
p.m.

4. Mediation as to Megan McCafferty shall be held on April 4, 2024, at 1:30 p.m.

5. A Settlement Conference as to Megan McCafferty shall be held on April 10, 2024, at 11:00 a.m. by audio and visual means on the Zoom platform. Megan McCafferty is on notice that if she fails to appear for this Settlement Conference, a hearing on Washoe County Human Services Agency's *Petition for Hearing* will proceed in her absence, and the Court may grant the relief sought in the Petition.

6. An Evidentiary Hearing as to Megan McCafferty shall be held on May 3, 2024, at 1:30 p.m. By express agreement of all parties and counsel of record, the Evidentiary Hearing shall be held by audio and visual means via the Zoom platform. Megan McCafferty is on notice that if she fails to appear by audio and visual means at the Evidentiary Hearing, the Court will proceed with the hearing on Washoe County Human Services Agency's *Petition for Hearing* in her absence and the Court may grant the relief requested in the Petition. If Megan McCafferty is unable to appear by audio and visual means at the Evidentiary Hearing, she shall contact Washoe County Human Services Agency at least seven (7) business days in advance of the Evidentiary

1 Hearing to assist with making arrangements to appear by audio and visual means.

2 7. Each party must file with the Court an Evidentiary Hearing Statement, including a list
3 of witnesses, no later than 5:00 p.m. five (5) judicial days prior to the Evidentiary Hearing.

4 8. If a party intends to offer more than ten exhibits, the proposed exhibits must be bound,
5 tabbed and indexed. Petitioner's exhibits will be marked in alphabetical sequence (A, B, C. . .)
6 and Respondent's exhibits will be marked in numerical sequence (1, 2, 3. . .). Each party shall
7 submit two copies of the proposed exhibits to the Court and one copy to the opposing counsel.
8 Each party may leave their binder at the District Court Binder Drop Off located in the lobby at
9 One S. Sierra Street no later than 10:00 a.m. on Wednesday before the Evidentiary Hearing. Any
10 party leaving an exhibit binder shall email Department JM1 Court Clerks after leaving their
11 binder at: mary.fiala@washoecourts.us and tanya.greenwell@washoecourts.us.

12 9. If a party intends to offer less than ten exhibits, the proposed exhibits must be e-filed
13 48 hours prior to the hearing.

14 10. Counsel shall meet and discuss the admissibility of proposed exhibits. At the opening
15 of the Evidentiary Hearing, counsel shall inform the Court which exhibits are being admitted
16 without objection.

17 11. If Megan McCafferty and Washoe County Human Services Agency are able to reach
18 a resolution on the Petition prior to the Settlement Conference or the Evidentiary Hearing, then
19 the date set for the Settlement Conference or the Evidentiary Hearing shall be used for the
20 Adjudicatory Hearing and Dispositional Hearing. If this matter is adjudicated during the
21 Settlement Conference or the Evidentiary Hearing, all parties shall be prepared to proceed to the
22 Dispositional Hearing.

23 12. The parties shall notify the Court if they subsequently receive information that
24 provides reason to know the children are Indian children.

25 13. The Dispositional Hearing scheduled for March 20, 2024, at 2:00 p.m., is hereby
26 VACATED as to Megan McCafferty only.

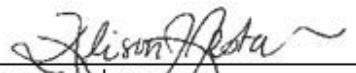
1 14. All orders previously entered herein shall remain in full force and effect.

2 NRS 125C.0045(6) regarding abduction, concealment or detention of a child: PENALTY
3 FOR VIOLATION OF ORDER: THE ABDUCTION, CONCEALMENT OR DETENTION OF
4 A CHILD IN VIOLATION OF THIS ORDER IS PUNISHABLE AS A CATEGORY D
5 FELONY AS PROVIDED IN NRS 193.130. NRS 200.359 provides that every person having a
6 limited right of custody to a child or any parent having no right of custody to the child who
7 willfully detains, conceals or removes the child from a parent, guardian or other person having
8 lawful custody or a right of visitation of the child in violation of an order of this court, or
9 removes the child from the jurisdiction of the court without the consent of either the court or all
10 persons who have the right to custody or visitation is subject to being punished for a category D
11 felony as provided in NRS 193.130.

12 Pursuant to NRS 125C.0045(7) the terms of the Hague Convention of October 25, 1980,
13 adopted by the 14th Session of The Hague Conference on Private International Law, apply if a
14 parent abducts or wrongfully retains a child in a foreign country.

15 IT IS SO RECOMMENDED.

16 Dated: March 06, 2024

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18 COURT MASTER

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20 NOTICE

21 These Recommendations are governed by WDCR 24 and WDFCR 32. Any objection or
22 motion to adopt or modify the master's recommendation shall be filed within 7 days after service
23 of written findings of fact and recommendation. The objection or motion to adopt or modify shall
24 briefly state the primary issues for review.
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